

CONNECT SERVICE CONTRACT

This CONNECT Service Contract (hereinafter referred to as "Contract") is entered into on this 1st of July 2023 by and between CONNECT (hereinafter referred to as "CONNECT") and the Brecksville-Broadview Heights City School District (hereinafter referred to as "the school") upon the following terms and conditions.

WHEREAS, CONNECT is a regional council of governments established pursuant to O.R.C. Chapter 167 and operates as an information technology center pursuant to O.R.C. 3301.075 and O.A.C. 3301-3; and

WHEREAS, as a non-profit, regional council of governments and an information technology center, CONNECT's fundamental purpose is to provide various supportive technology services to its members; and

WHEREAS, the School is a member of CONNECT and desires to purchase certain services from CONNECT pursuant to the terms and conditions set forth herein and has acted in its official capacity to authorize this Contract and has appropriated the necessary funds for the same.

NOW, THEREFORE, for mutually acceptable consideration, the parties hereto agree as follows:

1. Services: CONNECT shall provide the School with all of the services specified in Exhibit A attached hereto (hereinafter referred to as "the Services").

2. Payment for Services:

a. As consideration for providing the Services, the School shall pay CONNECT the fees established for the Services as specified in **Exhibit A** attached hereto (hereinafter referred to as "the Service Fees"). The Service Fees shall be calculated based upon active students reported in the school's student information system or other equivalent total headcount based upon changes to state of Ohio reporting for the immediately prior year. The Service Fees shall be due and payable on an annual basis on or before the first day of July.

b. In addition to the Service Fees, the School understands that CONNECT incurs certain incidental costs on behalf of School and agrees that it shall be responsible to CONNECT for any and all such incidental incurred on its behalf including but not limited to costs of specified forms, programming/setup charges related to data provided to third party vendors, secure CONNECT activity costs (if required), rented equipment, equipment purchased on behalf of the School, equipment maintenance, and supplies incidental to the School's operation of the computer system, provided CONNECT has received a purchase order from the School prior to incurring such costs.

c. Upon the termination and/or expiration of this Contract, the School shall pay CONNECT for any and all costs associated with data conversion and/or transmission of the School's data on a time and materials basis.

d. If the School fails to pay any Service Fee or incidental charge when due and thereafter fails to pay such fee/charge within thirty (30) days after receipt from CONNECT of written notice of such nonpayment, CONNECT may suspend services at any time upon delivery of written notice to the School. Late payments shall bear interest at an annual percentage rate of twelve percent (12%) or the highest rate allowed by law, whichever is lower.

3. Term: This Contract shall be for an initial term of one (1) year, commencing on July 1, 2023 and ending on June 30, 2024. No later than June 1st of the year of Contract expiration, at the request of either party, the parties shall meet to discuss the terms and conditions of a renewal or expiration. In the absence of a meeting, this Contract and the Services and incidentals provided herein, shall automatically renew for successive one (1) year terms unless either party provides the other party with advance written notice of its intent not to renew this Contract on or before December 31 of the year preceding the year in which the Services will terminate.

4. Responsibilities of CONNECT:

a. CONNECT shall make every effort to maintain a minimum application availability of 99% during regular business hours. CONNECT shall make every effort to maintain application availability of 99% outside of regular business hours exclusive of regularly scheduled maintenance and backup.

b. CONNECT shall complete system maintenance, system upgrades, and system installations affecting system availability outside normal business hours unless any such maintenance, upgrade, or installation is necessary because of an unexpected system failure caused by events beyond CONNECT's control, or unless supporting vendors are not available outside normal business hours. Notification of every planned system outage shall be made at least twenty-four (24) hours in advance of the outage. Notification of system maintenance, system upgrades, and system installations affecting system availability will be provided to the School's designated representative via e-mail and in the system greeting displayed during system logon.

c. CONNECT shall install all new versions, updates, and patches within timeframes specified by the software producer. CONNECT shall also maintain an appropriate application environment.

d. CONNECT shall, at the request of its advisory committees, evaluate new applications and services for the benefit of the School.

e. CONNECT shall maintain a regular backup schedule including at a minimum nightly data backup maintained on a thirty (30) day rotation, and monthly system backup maintained on a twelve (12) month rotation. CONNECT shall restore data from backup as required by the School.

f. CONNECT shall provide training to appropriate personnel of the School to the extent necessary for the School to perform system functions and procedures and to create system reports.

g. CONNECT shall provide and maintain appropriate and timely documentation to authorized users of the School where such documentation is made available to CONNECT by supporting vendors. This documentation shall be made available in electronic and hardcopy format as appropriate and to the extent it is available to CONNECT.

h. CONNECT shall evaluate the quality of service being provided to the School via any of the following: (1) Quarterly Advisory and Board of Director meetings; (2) Periodic customer surveys; (3) Training evaluation forms; and (4) Other methods as determined appropriate.

i. If requested by the School in writing, CONNECT shall plan and coordinate the School's ordering and installation, at the School's cost, of proper equipment related to the Services being provided, and shall provide information to the School to assist in obtaining necessary forms.

j. CONNECT will be responsible for protecting its data and shall ensure that it has appropriate and necessary policies and practices that address cybersecurity safeguards.

5. Responsibilities of the School:

a. The School shall make its personnel and records available to CONNECT to the extent necessary to facilitate the planning, training, and implementation process.

b. The School shall designate appropriate and qualified personnel for training and access to CONNECT's systems and services.

c. The School shall notify CONNECT's designated support personnel regarding application and network issues and shall designate a contact person with authority to make decisions for the School regarding the Services and provide CONNECT with information sufficient to contact such person in an emergency.

d. The School shall notify CONNECT of relevant staff changes, including all individuals that are granted access to CONNECT's networks, systems, and applications.

e. The School shall participate in quality of service measuring activities as outlined previously, including but not limited to, advisory committee meetings, periodic customer surveys, and training evaluation forms.

f. The School shall be responsible for protecting its data and shall ensure that it has appropriate and necessary policies and practices that address cybersecurity safeguards.

6. Cooperation: Upon CONNECT's request, the School shall provide, without charge, copies of all information, data, records, and/or reports which CONNECT deems necessary to provide the Services. Appropriate conferences shall also be scheduled at convenient times with

essential administrative personnel of both parties for the purpose of discussing necessary information.

7. Authority: CONNECT and the School hereby represent to each other that their respective undersigned officers are duly authorized to execute this Contract. Upon request, either party shall provide to the other party a copy of the governing authorities authorizing resolution to ensure the commitment and enforceability of this Contract.

8. Limitation on Liability:

a. CONNECT shall not be liable to the School for failure to provide any service unless such failure is due to the gross negligence of CONNECT. (Gross negligence encompasses conduct that evinces reckless disregard or intentional wrongdoing.) In such an event, the School's exclusive remedy shall be as follows: CONNECT shall re-create the reported incident to such service if the same can be reasonably performed and if the School provides CONNECT with any source data necessary for such work. If such work cannot be performed by CONNECT for any reason, the School shall be entitled to reimbursement by CONNECT of all costs incurred by the School to recover or reconstruct all lost data, in such form as necessary for the School's purposes, in an amount not to exceed the amount paid by the School to CONNECT for such service.

b. Use of any information obtained through the CONNECT network is at the School's risk. CONNECT expressly denies any responsibility for the accuracy or quality of such information.

c. The School recognizes and acknowledges that CONNECT does not make any warranties, express or implied, including without limitation any warranty of merchantability or fitness for a particular purpose, with respect to the network, the Services, or the Service's features, and the School hereby expressly disclaims all such warranties. Furthermore, the School agrees that CONNECT shall not be liable for any special, incidental, indirect, or consequential damages or for the loss of profit, revenue, or data arising out of the School's use of, or inability to use, the network, even if CONNECT shall have been advised of the possibility of the potential damage or loss.

d. CONNECT shall not be liable for any losses, damages, or costs incurred as a result of the errors or omissions of the School, its employees or agents. Furthermore, CONNECT shall not be liable for failure to perform if such failure is due to causes or conditions beyond its control.

9. Confidentiality:

a. CONNECT shall exercise reasonable care in preserving and protecting the confidentiality of information and materials furnished to it by the School.

b. CONNECT shall not disclose any material, information or data concerning the School's operation to any person or entity without the School's prior written consent, except as required by law and as necessary or appropriate for CONNECT to carry out

its proper functions.

c. The School shall not disclose to any person or entity any material, information, or data obtained from CONNECT, whether through use of the computer system or otherwise, without CONNECT's prior written consent, except as required by law and as necessary or appropriate for the School to carry out its proper functions.

10. Property:

a. All customizations, computer programs, written procedures, and similar items utilized or developed by CONNECT in connection with this Contract shall at all times be the property of CONNECT.

b. All data files shall remain the property of the School, subject to CONNECT's Data System Security Policy. Within ten (10) business days after the expiration or termination of this Contract and receipt of payment for any outstanding charges, including conversion and/or transmission charges, by CONNECT from the School, CONNECT shall return all available data files to the School. The files shall be returned in a form at the sole discretion of CONNECT.

11. Compliance with Law: Both parties shall comply with all applicable Federal, State, and Local laws, ordinances, codes, regulations, and policies, including but not limited to those governing the disclosure of confidential information regarding students and/or their family members, such as the Family Educational Rights and Privacy Act (20 U.S.C. §1232g).

12. Breach: If either party believes the other has breached a provision of this Contract, the non-breaching party shall provide the breaching party with written notice of said breach. If the breach is remedied within thirty (30) days of receipt of the breach notice, said notice shall be void. If the breach is not remedied within thirty (30) days of receipt of the breach notice, the non-breaching party shall have the right to terminate this Contract upon expiration of said remedy period. Neither party shall be responsible to the other for any losses or failure to perform its respective obligations under this Contract when such loss or failure is caused by conditions beyond the party's control, such as fire, explosion, water, act of God, civil disorder or disturbance, labor dispute, vandalism, war, riot, sabotage, weather or energy related closing, governmental regulations, or other similar causes. In the event that this Contract is terminated pursuant to this provision, the School shall pay all outstanding compensation owed to CONNECT for the Services and incidental charges provided through the effective date of the termination.

13. No Waiver: No failure of either party to exercise any power reserved to it by this Contract or to insist upon strict compliance by the other party with any obligation or condition hereunder and no custom or practice of the parties at variance with the terms hereof shall constitute a waiver of either party's right to demand strict compliance with any of the terms of this Contract. Waiver by either party of any particular default shall not affect or impair either party's right to exercise any or all of its rights and powers herein, nor shall that constitute a waiver by that party of any right hereunder, or of its right upon any subsequent breach or default to terminate this Contract prior to the expiration of its term.

14. Amendment: This Contract may not be reformed, altered, or modified in any way by any practice or course of dealing, but may be modified or amended only by an instrument in writing duly executed by both parties.

15. Assignment: Neither party may assign or otherwise transfer, voluntarily or by operation of law, this Contract without the prior written consent of the other party.

16. Entirety: This Contract contains the entire Contract between the parties, and there are no oral promises or other representations inducing its execution or qualifying its terms. Any prior service contract or similar type of agreement between the parties, oral or written, is hereby superseded and terminated.

17. Governing Law: The laws of the state of Ohio shall govern the validity, performance, and enforcement of this Contract.

18. Notices: Any notice required or permitted herein shall be in writing and deemed given if delivered personally or if sent via certified U.S. mail.

19. Severability: Each article, paragraph, provision, term, and condition of this Contract, and any portions thereof, shall be considered severable. If, for any reason, any portion of this Contract is determined to be invalid or contrary to any applicable law, rule, or regulation, the remaining portions of this Contract shall be unimpaired, remain binding on the parties, and continue to be given full force and effect.

20. Section Headings: The section headings contained in this Contract are for convenience of reference only and shall not affect the meaning or interpretation of this Contract.

IN WITNESS WHEREOF, the parties hereto have executed this Contract on the date first written above.

Brecksville-Broadview Heights City School District:

By: _____, Superintendent

By: _____, Treasurer

By: _____, Board President

Connect:

By: _____ Jodie Hausmann, Executive Director